

Agreement
Mindfully School-Based Services Program for Brecksville-Broadview City School District

BOARD OF EDUCATION
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT
Brecksville, Ohio

RESOLUTION _____

AUTHORIZATION TO
ENTER INTO AN AGREEMENT WITH
MINDFULLY, LLC
FOR SCHOOL BASED SERVICES PROGRAM

WHEREAS, the Brecksville-Broadview Heights City School District on a daily basis provides a safe and healthy environment for students; and

WHEREAS, the Brecksville-Broadview Heights City School District recognizes the need for School Based Services Program of on-site specialized services by Ohio-licensed mental health professionals to provide emotional, psychological, substance abuse, and behavioral health evaluation and treatment services, as required or requested, to students and related family members; and

WHEREAS, Mindfully, LLC provides such services and will be on-site at school to deliver to students and related family members one-on-one sessions and group formats, in a coordinated manner with administrators, teachers and staff.

NOW, THEREFORE, BE IT RESOLVED, that the Treasurer/Chief Financial Officer be and hereby is authorized to enter into a one-year agreement with Mindfully, LLC for School Based Services Program of on-site specialized services;

BE IT FURTHER RESOLVED, by the Board of Education of the Brecksville-Broadview Heights City School District that the Treasurer/Chief Financial Officer be and is hereby authorized and directed to take such actions as are necessary to effectuate the terms and intent of this resolution.

Adopted: _____

Attest: _____

Name: _____

Treasurer / Chief Financial Officer

Name: _____

School Board President

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This Agreement by and between Mindfully, LLC, having its primary business address at 10290 Alliance Road, Blue Ash, Ohio 45242 (referred to as “Mindfully”) and Brecksville-Broadview Heights City School District having its primary business address at 6638 Mill Road, Brecksville, Ohio 44141 (referred to as “School District”), separately referred to as “Party” or jointly as “Parties”, is entered into as of the date, _____ (“the effective date”).

Now, therefore, the undersigned Parties agree as follows:

1. Mindfully agrees to deploy its school-based services program to serve the School District school locations listed herein.
2. School District agrees to engage Mindfully and its on-site school-based services program at the following locations:
 - a. [enter school name and approximate number of students enrolled]
 - b.
 - c.
3. Program Overview: The Mindfully school-based services program ("the Program") places masters-level, experienced, Ohio-licensed mental health professionals (Mindfully Providers") on-site, in selected school locations to provide emotional, psychological, substance abuse, and behavioral health evaluation and treatment services, as required or requested, to students and related family members. Services are delivered in one-on-one sessions and in group formats, in a coordinated manner with school leadership, teachers, and staff. The Program enables access to services via most commercial health insurance plans and Medicaid HMOs based upon the request of the school and the student/family insured.
4. Professional Development: As an option, upon request and at separate cost from this Agreement, Mindfully can provide Professional Development services and programs for faculty and/or staff on related area including:
 - a. Trauma Sensitive School Processes
 - b. Social-Emotional Learning
 - c. Staff and Teacher Self-Care
 - d. Professional Services/General Support to Staff
 - e. Extended Classroom Observation
 - f. Teacher/Classroom Feedback Sessions
 - g. Functional Behavior Assessments
 - h. Parent Education/Information Sessions
5. Primary goals of the Mindfully school-based Program:
 - a. Evaluate, diagnose, and treat or improve student emotional, social, and behavioral functioning.
 - b. Improve student's ability to cope with stress, peer pressure, family matters, and relationship skills through psychotherapy, mental health psychoeducation, and clinical groups as needed.
 - c. Increase student and family involvement and stability in support of student emotional, personal, and educational achievement.
 - d. Through evaluation, treatment, and testing if needed (MMPI, ADHD

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testing, substance abuse screening, etc.), Mindfully works with students of all ages to improve their mental health, school attendance, academic performance, and enhance family, peer, and school relationships.

6. Services commencement date will be set for each school site based upon highest priority first, the rollout schedule, and any unique requirements of each school population.
7. Mindfully Obligations:
 - a. Deploy and deliver services Program at selected school locations, within the school locations that a student attends.
 - b. For students identified for treatment (see Process Summary below), arrange and conduct intake meetings with Parents/Guardians and students to obtain required initial information.
 - c. Obtain signatures and authorization from Parents/Guardians for Consent for Treatment, Release of Information, and other standard intake requirements as needed by Mindfully and/ or School District. Coordinate with School District to work together to provide any language translation if deemed essential for the initial intake meeting.
 - d. Coordinate with the Parents/Guardians to identify and achieve the student's goals. Services provided to a student generally require a meeting with the family or Parent/Guardian.
 - e. Operate within School District rules and regulations and coordinate with a school's Principal and teachers regarding when a student can be seen for treatment. Regarding clinical matters and clinical ethics, if there is any conflict between School District rules and Code of Ethics standards from the State of Ohio Counselor and Social Workers and Marriage and Family Therapist Board ("Ohio Board"), the Ohio Board shall govern.
 - f. Student sessions and documentation remain confidential per HIPAA regulations. If a Mindfully Provider has immediate concern, for a student's safety or the safety of others, the Mindfully Provider is mandated to report to the Parent/Guardian, and under certain circumstances, the school and/or other authorities or resources.
 - g. In the event a student's treatment may include or benefit from an evaluation for medication a Mindfully Provider may choose to refer a Parent/Guardian to a medical practitioner. As with all referrals, the choice remains that of the Parent/Guardian.
 - h. Should a student or family request so, Mindfully will make reasonable effort to provide services at one of its office locations.
 - i. Maintain a Mindfully School Program Supervisor as a point of contact for School District regarding clinical matters, supervision, planning, and administrative matters.
 - j. Maintain oversight and coordination of Mindfully's school-based Providers via a Mindfully School Program Supervisor. Ensure Mindfully Providers are current on procedures, priorities, clinical standards, ethics, insurance requirements, and clinical matters. Conduct quarterly internal review meetings with Mindfully Providers for clinical and operational items.
 - k. Staff, manage, and support Mindfully on-site Providers. Mindfully Providers work for Mindfully and are part of our team. Mindfully Providers may not

Commented [AT1]: Please provide

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- work for a school district in which they are operating and are bound under separate agreement to not do so for a period of time.
- l. Maintain malpractice/professional liability insurance for each employed Mindfully Provider (i.e., Mindfully Providers who are independent contractors are responsible for maintaining their own malpractice/professional liability insurance).
 - m. Obtain insurance information from Parents /Guardians and verify eligibility. Review insurance coverage information and/or financial responsibility with Parents/Guardians at intake meetings. Should insurance deny any coverage or claims for services, the Guarantor (the insurance subscriber, typically the Parent/Guardian) will be advised and is responsible for final payment.
 - n. Process all insurance claims for services provided and manage all account settlements and/or payments. Process and manage all copayment, coinsurance, and patient responsibility payments directly between Mindfully and the Parent/Guardian. At no time shall School District be involved in *or* responsible for Parent/Guardian/Student insurance billing to or payments from a Parent/Guardian or Guarantor.
 - o. Issue account statements directly to Parents/Guardians, monthly or as needed. Provide billing/account support via telephone or website for Parent/Guardian account questions and payments.
 - p. For students who do not have insurance, Mindfully offers an optional self-pay configuration. Parents/Guardians may choose to set up a self-pay account or not. Self-pay accounts are arranged directly between the Parent/Guardian/Guarantor.
 - q. Mindfully Providers will be equipped with computer/tablet/mobile devices with commercially reasonable security software installed on such devices. Any specific security software required by School District shall be provided by School District.
 - r. Mindfully Providers shall communicate via Mindfully supplied email accounts and not any internal or other supplied email accounts. Mindfully Providers shall also communicate via confidential voice service (or similar) for internal and external calls.
8. School District Obligations:
- a. Coordinate and support introductions of Mindfully Providers to each of the selected school Principals, key contacts, teachers, and staff members.
 - b. Regularly promote to make known the Mindfully on-site school- based Program to school Principals and staff as *an* available/beneficial program and resource.
 - c. When appropriate, include Mindfully Providers in Principal and/or school staff meetings to strengthen the working relationship between Mindfully Providers and school teams, and to advance the overall results for the students.
 - d. Provide a confidential, quiet office with door, and small lockable filing cabinet, suitable for on-site behavioral health counseling.
 - e. Coordinate with Mindfully to mutually establish a regular schedule for office availability and use at each school location.
 - f. Provide hardwired or WIFI secure network/Internet access and access to

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network-based printer for modest/limited use. If secure access is not available, Mindfully will utilize a VPN or similar configuration.

- g. Mindfully Providers shall have their own computer/tablet/mobile devices with commercially reasonable security software installed on such devices. Any specific security software required by School District shall be provided by School District. School District shall not install or update software or settings on Mindfully Providers' computer devices without coordination with the Mindfully Program Supervisor.
- h. Provide reasonable school building and security access as needed to Mindfully Providers and the Mindfully School Program Supervisor in order to operate and deliver Program services.
- i. Regularly or periodically utilize communications and/or school websites, etc. to make the Mindfully school-based Program services known to the Parents/Guardians of School District students so they can participate. Consider setting a communication minimum standard at the School District level for each school to follow.
- j. At least one per school year, in coordination with the Mindfully Program Supervisor, sent "Good News" / Take Home Letter ("THL") home to families in the specific schools serviced, informing them of the Mindfully school-based Program available to them. Mindfully will produce the master copy of the "Good News/Take Home letters" from which copies can be generated by each school.

9. Process Summary:

- a. School District announces the availability of School-based services for each school. Each school site may have a unique start-date or schedule.
- b. School District and Mindfully coordinate initial on-site introduction of Mindfully Providers to school Administrators, Principals, key contacts, Teachers, and Staff members.
- c. For student referrals that are already identified, Mindfully and school staff will coordinate immediately regarding Parent/Guardian contact information.
- d. School District sends out to families the "Good News / Take Home Letter" to the family of each school sites, summarizing the Mindfully school-based Program and how to get started if interested.
- e. If a Parent/Guardian is interested in their child seeing a Mindfully Provider, the Take Home Letter is a referral form they can complete and send back to school with the student or send to school by any means. The school's point of contact (Guidance, Student Coordinator, etc.) reviews the referral and forwards it to the Mindfully Provider at the school along with any additional relevant information.
 - i. At this time in the Process, or at any time, Principals and school staff may share information with Mindfully Providers as appropriate to assist in the focus and delivery of mental health services regarding specific students. Mindfully Providers may listen but are not permitted to discuss clinical information unless the Release of Information ("ROI") is signed by the Parent/Guardian at the initial (intake) session and authorizes Mindfully Providers to disclose such clinical information to the applicable Principal and school staff. The ROI is obtained by Mindfully and enables

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- appropriate communication and coordination between Mindfully and the school staff.
- f. Mindfully verifies key information on the referral form including insurance eligibility, etc.
 - i. In some cases, the Parent/Guardian may hold a unique insurance configuration that may not be supported or may require additional steps. Mindfully will respond to this.
 - g. Mindfully Provider contacts the Parent/Guardian to arrange the initial (intake) meeting.
 - h. Mindfully Provider meets with the Parent/Guardian/Family, explains the program, all paperwork is reviewed and signed. The student is subsequently scheduled to meet with the Mindfully Provider at a time that best works for the teacher(s) of that student.
 - i. Session times are coordinated with teachers; Mindfully will attempt to minimize impact to schoolwork and academics.
10. Relationship: The relationship of the Parties is that of independent contractors. Nothing in this Agreement shall be construed as creating an employer-employee relationship, partnership, or agency relationship. This Agreement is non-exclusive, and School District and Mindfully are free to engage in other independent contracting activities. School District and Mindfully shall each be solely responsible for all its federal and state taxes, withholding, social security, workers' compensation, benefits, insurance, and all of its other obligations, and compliance with all laws and regulations.
11. Healthcare Records: Information discussed within clinical sessions with a student remains confidential in accordance with HIPAA. Mindfully Providers typically obtain an ROI authorized and signed by the Parent/Guardian, enabling the Mindfully Provider to confidentially communicate with Principals and school staff as needed. Per HIPAA and the Mindfully consent to treatment agreement with the Parent/Guardian, or, as in the appropriate circumstances, student all clinical healthcare records and documents associated with Mindfully services under this agreement remain the property of Mindfully.
12. Ethics: Both Parties agree and accept that all student therapy and student-provider or student-Mindfully relations shall be governed by the most current version of the Code of Ethics standards of the State of Ohio Counselor and Social Worker and Marriage and Family Therapist Board.
13. Contacts: Both Parties shall provide key or primary contact persons for ongoing operations, clinical matters, legal/contract matters, compliance matters, technology matters, and administrative and miscellaneous matters.
14. Non-Solicitation: Both Parties agree to not solicit nor hire any of the other Party's Providers, employees, or independent contractors for a period of two (2) years following the termination of this agreement.
15. Limitation of Liability: a.) School District shall only be liable to Mindfully for injury, death, or loss to property or persons pursuant to Ohio Revised Code Chapter 2744. Mindfully's exclusive remedy for School District's breach of its obligations under this agreement is separately set forth under the "Term and Termination" section herein. b.) Mindfully shall only be liable for the gross negligence of its employees, or contractors while they are in or upon the school locations. School

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District’s exclusive remedy for Mindfully’s breach of its obligations under this agreement is separately set forth under the “Term and Termination” section herein.

16. Mutual Indemnification: Each Party hereby agrees to indemnify, defend, and hold the other Party harmless from any and all third party claims, demands, costs, liabilities, losses, expenses and damages (including reasonable attorney’s fees, court costs, but excluding consequential damages) arising out of or in connection with any claim by a third Party against the indemnified Party to the extent caused by the negligent act or omission, or breach of this Agreement by the indemnifying Party or the indemnifying Party’s employees, contractors, subcontractors or agents.
17. Term and Termination: Given the initial effort of resourcing and coordination, the initial term of this agreement shall be one (1) year from the effective date. Unless otherwise terminated or modified via addendum mutually agreed to by the Parties, this agreement shall renew for one (1) year upon the end of the current agreement term. Upon either Party’s failure to perform its obligations under this agreement, the non-breaching party may, upon 90 days prior written notice, terminate this agreement. In the event of the agreement termination, Mindfully shall provide notice in writing of ongoing therapeutic service options, per the Ohio Board protocol, to any students and/or Parents/Guardians with whom appointments have been or would likely be scheduled, and School District agrees to cooperate and support such notification efforts as needed.

In witness whereof, the Parties have entered into this Agreement effective on the date set forth above.

**BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL DISTRICT**

MINDFULLY, LLC

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____